

DISSENTING OPINION BY M. SCHÜCKING.

I, THE UNDERSIGNED, am also unable to concur in the judgment of the Court, for the following reasons :

I. The right to free passage through the Kiel Canal, in my opinion, undoubtedly assumes the form of a *servitus juris publici voluntuaria*. This conception, which for centuries has proved extremely useful in international law, is, it is true, at the present time the subject of controversy amongst writers on international law, but its importance has in fact been increased by the peace treaties following the World War. For in these treaties many legal situations have been created which can be placed in no other category than that of servitudes of international law.

If the right in question is regarded as a servitude, important consequences ensue with respect to the present case.

a) According to the teaching of writers on international law, all treaties concerning servitudes must be interpreted restrictively in the sense that the servitude, being an exceptional right resting upon the territory of a foreign State, should limit as little as possible the sovereignty of that State. According to a purely literal construction of Article 380, the servitude is excluded from application only in cases where ships are concerned which belong to nations themselves at war with Germany. Serious doubts, however, arise as to whether Germany, in order to safeguard her interests, when placed in the position of a belligerent or neutral, should in fact, under Article 380, lose the right to take special measures as regards the canal, not provided for under Article 381, para. 2, also as against ships belonging to States other than her enemies. The canal is under the jurisdiction of Germany and it has not been neutralised as the Suez Canal had been, nor even in a still less complete form like the Panama Canal. Its use has rather been internationalised, like that of the great inland waterways. The right to take special measures in times of war or neutrality has not been expressly renounced ; nor can such renunciation be inferred from the fact that the Canal

is to be "maintained free and open." The fact that the right is granted in perpetuity does not in itself exclude the possibility of regulating or even of temporarily suspending its exercise, and the essential words which were used to provide for the neutralisation of the Suez Canal and which were reproduced in the treaty relating to the Panama Canal namely "in time of war as in time of peace", do not appear in Article 380. It is possible that a restrictive interpretation of the treaty establishing the servitude may infringe the purely literal meaning of Article 380, an interpretation, that is to say, according to which in time of war and neutrality the Reich, as possessing sovereignty over the canal zone, is entitled to take such measures against shipping as in normal times may not be taken by her under Article 380 and the following Articles. This interpretation, however, is imposed by two further considerations: In the first place there is the fact that Article 381, para. 2 proves the willingness of the victorious States to guarantee in normal times the interests of the administration of the riparian State even as against the right of free passage, a fact which makes it possible to argue that when provision is made for these less important interests, it is to be inferred that the more important interests are also covered. In the second place there is the circumstance that during the peace negotiations Germany, with regard to the clearly inadequate provisions of Article 380, made the express proposal "*à conclure des arrangements précis*", though, it is true, on condition of reciprocity. Seeing that the victorious States did not accept this suggestion, they must allow the principle of Roman law "*obscuritas pacti nocet ei qui apertius loqui potuit*" to prevail against them.

b) Again, according to the teaching of writers on international law the States benefiting by the servitude are under the obligation *civiliter uti* as regards the State under servitude. The vital interests of the State under servitude must in all circumstances be respected. From this standpoint the benefiting State must allow its rights at times to be temporarily impaired. The vital interests of Germany at the moment made it necessary for her to observe a strict and absolute

neutrality with regard to the war which was being waged in the immediate vicinity of her frontiers. In this respect the internal political situation of Germany at the time plays no unimportant part. Already on several occasions the transit of eastward bound trains loaded with munitions had given rise in Germany, for instance at Giessen, Marburg and Untertürkheim, to local disturbances which it had not always been possible for the police and Reichswehr to master. In several localities the workers' organisations had decided to use force in order to stop the transit of war material. Similar occurrences might also have taken place in the Kiel Canal where, owing to the existence of locks and gates, a ship could only pass with the assistance of German labour. It is certain that the principle of respect for treaties requires that the State which has accepted an obligation should not lightly invoke internal difficulties as an excuse for disregarding external engagements. But the German Government at that time was faced with quite exceptional difficulties arising out of Germany's internal political situation. If it is possible to apply the doctrine of *civiliter uti* to a servitude of international law, then the German Government, in applying also to the Kiel Canal the prohibition against transit of contraband, did so in order to safeguard its vital interests. In doing this Germany did not allow a special right of necessity to prevail over her contractual obligations; she merely made use of the natural limitations to which every servitude is subjected.

II. Considerations of another kind also justified Germany in prohibiting, in spite of Article 380, the passage of the "Wimbledon" through the Kiel Canal. One of the two belligerent States — Russia — did not participate in the Versailles Treaty; in my opinion, Germany therefore remained under an obligation to fulfil her duties as a neutral towards her. In refutation of this contention, it has been asserted that there is a general consensus of legal opinion to the effect that when an artificial waterway connecting two open seas has been permanently dedicated to the use of the whole world, such waterway is assimilated to natural straits, in the sense that the neutral riparian State can no longer be held

responsible either for the passage of ships belonging to belligerents or, probably, for the passage of ships carrying munitions, and this even when such dedication has taken place only by means of a special agreement. The existence of such a consensus of opinion, however, does not seem to me to be sufficiently proved. The practice as regards the Suez and Panama Canals is adduced as a basis for the opinion in question. In refutation of this argument, it must once more be stated that the legal situation of the Suez and Panama Canals is entirely different from that of the Kiel Canal, in that, as regards the former Canals, neutralisation has taken place in the sense of a general "Befriedung" (negative neutralisation) of the Canal Zone, whereas such a neutralisation is not established by Article 380 as regards the Kiel Canal. Even admitting that the Panama Canal is placed under the exclusive control of the United States, it is nevertheless true that the Hay-Pauncefote Treaty of November 18th, 1901, mentions this general neutralisation and contains a number of provisions in the same sense. In these circumstances it would appear open to objection to apply *de plano* to the Kiel Canal conceptions of international law which have been developed in connection with the Suez and Panama Canals, when, as has already been stated, the use only of this Canal has been internationalised, a fact which undoubtedly tends rather to create a resemblance between it and international inland waterways.

In these circumstances it is in my opinion at all events necessary to answer the question whether the passage of the "Wimbledon" was compatible with Germany's duties as a neutral towards Russia. The answer to this question must for the following reasons be in the negative.

A close examination of the origin of Articles 2 and 7 of the fifth Hague Convention of 1907 concerning the rights and duties of Neutral Powers and persons in land warfare, and of the application of these articles, during the World War, in particular by Holland in her capacity as a neutral, shows that the despatch of war material, even when not under military control or escort, is to be considered as a convoy in the sense of Article 2 of the Convention when it does not

take place as the result of a commercial transaction, but when the belligerent himself assumes the double capacity of consignor and consignee, no matter whether the transport is effected by means of private ships. No neutral may tolerate the transit through its territory of such a convoy. It follows that the German Reich had not the right to grant the "Wimbledon" passage through the Kiel Canal seeing that the munitions in question were despatched by a Polish Mission in Salonika, were consigned to the Naval Base of the Polish State in Danzig and were the property of that country ; moreover, at that date a state of peace had not yet been reestablished. As Holland, in the capacity of a neutral, rightly emphasised in connection with the sand and gravel transport on the Rhine, and having regard to the fact that one belligerent had in that matter invoked the Rhine Navigation Act, neutral duties must take precedence over any contractual obligations. Such is also the doctrine of the writers on international law (see Richard Kleen: *Lois et usages de la neutralité*. Paris 1898. Vol I : pp. 223, 224). The violation of the duties of a neutral no doubt constitutes an offence under international law even when treaty obligations assumed towards third States can be put forward in support of such an act. It cannot have been the intention of the victorious States to bind the Reich, by means of the Versailles Treaty, to commit such offences as against third States. It would, moreover, have been impossible to give effect to such an intention, because a legally binding contractual obligation cannot be undertaken to perform acts which would violate the rights of third parties.

(Signed) WALTHER SCHÜCKING.